

HOUSE BILL 1391

By Pearson

AN ACT to amend Tennessee Code Annotated, Title 10;
Title 18 and Title 40, relative to expunction.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-32-101, is amended by adding the following as a new subsection:

(p)

(1) Notwithstanding this section to the contrary, the clerks of each court with criminal jurisdiction shall remove and destroy all public records of a conviction for a Class E felony that is eligible for expunction under subdivision (g)(1)(A) or a misdemeanor that is eligible for expunction under (g)(1)(B), one (1) year after the person has completed any sentence imposed by the court.

(2) The court in which a person is convicted on or after July 1, 2025, of an offense that must be expunged under subdivision (p)(1) shall notify the clerk of the date the person completes the sentence imposed and sign an order of expunction for the records of the conviction to be entered one (1) year from such date. Upon the date of the expunction order, the clerk must remove and destroy all public records of the conviction.

(3) Following the removal and destruction of all public records of the conviction, the clerk must mail to the defendant's last known address a copy of the order of expunction. Subdivisions (g)(12) and (13) apply to an order of expunction issued pursuant to this subsection (p).

(4) A person who was convicted prior to July 1, 2025, of an offense that is eligible for expunction under subdivision (p)(1) may request the clerk of the court in which the conviction occurred remove and destroy all public records of the conviction. The clerk must notify the court of the request. Within thirty (30) days of the request, the court shall determine whether the conviction is eligible for automatic expunction under this subsection (p) and, if so, enter an order of expunction. The clerk must notify the person by mail of the court's determination and, if an order of expunction was entered, include a copy of the order of expunction. A clerk is not required by this subsection (p) to destroy the records of a conviction that occurred prior to July 1, 2025, unless the court enters an order of expunction under this subdivision (p)(4).

(5) Automatic expunction pursuant to this subsection (p) must be done without cost to the person.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.